

COURT OF APPEAL FOR ONTARIO

CITATION: R. v. Murray, 2025 ONCA 222

DATE: 20250321

DOCKET: C69403 & C69705

Fairburn A.C.J.O., Dawe J.A. and Code J. (*ad hoc*)

BETWEEN

DOCKET: C69403

His Majesty the King

Respondent

and

Corey Murray

Appellant

AND BETWEEN

DOCKET: C69705

His Majesty the King

Respondent

and

Curtis Murray

Appellant

Marianne Salih and Alexander Ostroff, for the appellant Corey Murray

Ian B. Kasper, for the appellant Curtis Murray

Catherine Weiler and Jacob Millns, for the respondent

Heard: January 8, 2025

On appeal from the convictions entered by Justice Anne M. Molloy of the Superior Court of Justice, sitting with a jury, on December 7, 2019, and from the sentence imposed on January 29, 2021, with reasons for sentence reported at 2021 ONSC 597.

Dawe J.A.:

[1] The appellants Curtis and Corey Murray, who are brothers, were jointly charged with first degree murder in the death of Trevor Seraphine. The jury found them guilty of second degree murder, and they were both sentenced to life imprisonment with twenty years' parole ineligibility. Each appeals against his conviction and sentence.

[2] The appellants' conviction appeals focus on the police failure to preserve surveillance video recordings from the building where Curtis Murray lived, and on the Crown's late disclosure to the defence of the circumstances in which this evidence was lost.

[3] The trial judge found that the loss of this evidence violated the appellants' rights under s. 7 of the *Canadian Charter of Rights and Freedoms*, but concluded that the breaches could be adequately remedied by a jury instruction along the lines proposed by Doherty J.A. in *R. v. Bero* (2000), 151 C.C.C. (3d) 545 (Ont. C.A.), at para. 67 (a "*Bero* instruction"). On appeal, the appellants argue that the trial judge erred by not staying the proceedings. In the alternative, they argue that the *Bero* instruction she gave the jury was inadequate.

[4] On their sentence appeals, the appellants take issue with the factual basis on which the trial judge sentenced them, and argue that their parole ineligibility periods should be reduced.

[5] For the following reasons, I would not give effect to any of these arguments, and would dismiss the appeals.

A. FACTUAL BACKGROUND

(1) The murder of Trevor Seraphine

[6] During the early morning hours of March 21, 2015, two masked men attacked and killed 17-year-old Trevor Seraphine in the entryway of an apartment building located at 44 Willowridge Road. The attack was captured on building security video. The first assailant was armed with a gun, and fired several shots from close range, one of which hit Mr. Seraphine in the chest. The second attacker then stabbed Mr. Seraphine twice with a knife, inflicting the fatal injury.

[7] The Crown maintained that Curtis Murray was the shooter, and that his older brother Corey Murray was the stabber. The prosecution's theory was that the Murray brothers' killing of Mr. Seraphine was connected to an escalating feud they were having with a group of men associated with the 44 Willowridge building, referred to at trial as "the Champagnie group". A day earlier, members of the group had broken into Curtis's apartment in a nearby apartment complex, 7 Richgrove Drive, stolen his possessions, and put them up for sale in the lobby of 44

Willowridge. Mr. Seraphine was not part of the Champagnie group and did not live at 44 Willowridge, but was at the building that night to visit a friend. The Crown's theory was that the Murray brothers had gone to 44 Willowridge with a plan to kill someone associated with the building as an act of revenge against the Champagnie group, and had attacked and killed Mr. Seraphine because he happened to be there.

[8] The main contested factual issue at trial was the identity of the men who killed Mr. Seraphine. The Crown's case was built largely on (i) similarities between the two killers' clothing and the clothes the Murray brothers could be seen wearing on security video footage in the days preceding the killing; (ii) evidence of various hostile interactions between the brothers and members of the Champagnie group during this same time period; and (iii) evidence of after-the-fact conduct by Curtis.

[9] The appellants disputed that they were the men who killed Mr. Seraphine, but did not dispute that whoever killed him had committed murder. However, it was a disputed issue at trial whether Mr. Seraphine's murder was planned and deliberate, making it first degree murder.

(2) Events leading up to the murder

[10] Curtis Murray lived in an apartment building at 7 Richgrove Drive, a short distance away from the Willowridge building complex. His girlfriend at the time,

Samelia Wiltshire, had moved out of the apartment in January but was a frequent visitor, as was Curtis's brother Corey.

[11] Evidence was adduced about a series of incidents in the days leading up to the killing of Mr. Seraphine that showed increasing animosity between Curtis Murray and a group of men associated with both the Willowridge and Richgrove apartment building complexes, whose apparent leader was a man named Rushaune Champagnie.

[12] On the evening of March 18, 2015, Curtis and Ms. Wiltshire were accosted at a nearby "Hasty Market" store by Mr. Champagnie and a group of other men. One of these men drove a red Mazda, and Ms. Wiltshire recognized him as living in the Richgrove complex.

[13] Ms. Wiltshire testified that after this altercation she and Curtis went to his apartment at 7 Richgrove, and that when they arrived Corey Murray was already there. Later that night, between 10:00 p.m. and midnight, another Richgrove resident saw two men whom he identified as the Murray brothers shouting and banging on the roof of a red Mazda, which drove away.

[14] In the early morning hours of March 19, at 1:24 a.m., security camera video footage from 7 Richgrove showed two men going down a back staircase. One, whose face was visible, was wearing the same clothes Curtis had been wearing earlier that evening. Ms. Wiltshire testified that she recognized him as Curtis. The

second man was wearing an inside-out hoodie and had his face obscured, and Ms. Wiltshire could not identify him at trial. The first man went into the parking lot, while the second man remained by the door.

[15] The Crown's theory was that the second man was Corey, and that he kept watch while Curtis went out and flattened the red Mazda's tires. This video was significant both because if the men in the video were the Murray brothers it provided additional evidence of their escalating feud with the Champagnie group, and also because the clothing worn by the second man in the stairwell video was similar to that worn by the man who stabbed Mr. Seraphine.

[16] Ms. Wiltshire testified that later that night she and the Murray brothers left 7 Richgrove and went to an after-hours club, and that Curtis then dropped her and Corey back off at the building at around 4:00 a.m. Security video from 7 Richgrove that was obtained and preserved by the police showed Ms. Wiltshire and Corey entering through the building's "moving room" at 4:01 a.m.

[17] Later that morning (March 19) the owner of the red Mazda found that his tires had been slashed. The same eyewitness who had described seeing both Murray brothers pounding on the Mazda's roof the previous night testified that he saw one of the Murray brothers in a heated argument with the red Mazda's owner. Part of this altercation was also captured on security video footage that the police preserved. Later that day, when Ms. Wiltshire was parking her car in the Richgrove

complex parking lot, the red Mazda blocked her in, and a man asked her where Curtis was. Ms. Wiltshire was frightened and drove away.

[18] During the night of March 19, Mr. Champagnie and two other men broke into Curtis's apartment, vandalized it, and stole his clothing and his large collection of expensive sneakers. The next morning, March 20, they put up signs at 44 Willowridge advertising a "Block Friday sale", and began selling Curtis's possessions in the lobby. Ms. Wiltshire identified some of the property visible on security video footage as items stolen from Curtis's apartment.

[19] During the early morning hours of March 21, the Murray brothers were driven to 44 Willowridge by an unknown third person. Security video from 44 Willowridge showed Curtis speaking to some men in the lobby, and tearing down a sign advertising the "Block Friday sale". The Murray brothers were then driven to 7 Richgrove and went inside. Security video footage then showed them both leaving 7 Richgrove at 1:45 a.m., and returning to the same car in which they had arrived. This was the last time either brother was seen at 7 Richgrove.

[20] Thirteen minutes later, just before 2:00 a.m., the two masked assailants attacked and killed Mr. Seraphine in the entryway of 44 Willowridge. The Crown's theory was that the killers were the Murray brothers, and that they had made not entirely successful attempts to disguise themselves, and to conceal distinctive elements of their clothes and shoes.

(3) The arrests of the Murray brothers

[21] Ms. Wiltshire testified that on March 20, 2015, when Curtis told her about the break-in and theft, they had agreed that neither of them would return to the 7 Richgrove apartment. However, on March 22 Curtis asked her to go there and remove anything that might identify him, which she did. Curtis also changed his phone number, and at some point before he was arrested on March 30, 2015 he cut his hair. The defence disputed that he did this to change his appearance.

[22] Corey Murray was arrested three days later, on April 3, 2015. The police seized a pair of red Nike Air Max 90s sneakers, which were a rare model. The Crown's theory was that these were the same type of shoes worn by the stabber, as seen on the security video footage.

(4) The police failure to preserve video from 7 Richgrove

[23] The appellants' grounds of appeal against their convictions arise out of the police failure to obtain and preserve some of the security video footage from 7 Richgrove from the days before the murder. The police did obtain and preserve two brief clips from the early morning hours of March 19, and a nearly complete set of recordings from between 7:00 a.m. on March 19 to 7:00 a.m. on March 21.¹ However, although the police seized the hard drive from the building security

¹ Some potentially relevant footage from a camera at the rear of 7 Richgrove during the early morning hours of March 21 was not preserved.

system's digital video recorder ("DVR"), the data on this hard drive became corrupted. As a result, the recordings from March 17, March 18, and for most of the early morning hours of March 19 were not preserved in a usable form, nor were any recordings from after 7:00 a.m. on March 21. The circumstances that led to these video recordings being lost are discussed further below.

B. THE CONVICTION APPEALS

[24] The appellants' two grounds on their conviction appeals both arise out of the police failure to preserve all of the security video footage from 7 Richgrove, and the Crown's late disclosure of this to the defence.

(1) Background facts regarding the lost 7 Richgrove videos

[25] As already noted, the police did obtain and preserve some security video footage from 7 Richgrove. This video was disclosed in a timely way.

[26] However, the police did not preserve any footage that had been recorded either before March 19, or after 7:00 a.m. on March 21. Although they seized the hard drive from the security system DVR, they later discovered that the data on this hard drive was corrupted. Among other things, the file indexing system had been lost, which made the data that remained on the hard drive – a series of brief video snippets in no particular order – effectively inaccessible and unusable.

[27] Defence counsel were only fully informed about the police failure to preserve this video evidence in 2019, mid-way through the trial. However, several years

earlier, in November 2016, the Crown had disclosed that it was in possession of “corrupted” security videos from 7 Richgrove “on days leading up to and after the homicide”, and that “efforts [were] being made to render the surveillance useable.” Defence counsel who were representing the appellants at the time² did not make any follow-up inquiries about this corrupted video.

[28] The trial judge’s findings of fact about the circumstances that led to these video recordings not being preserved are set out in detail in her reasons on the defence’s s. 7 *Charter* application, reported as *R. v. Murray #6*, 2020 ONSC 1495. I will provide only a brief overview.

(a) The police video seizures from 7 Richgrove

[29] The police quickly identified Curtis Murray as a suspect in the killing of Mr. Seraphine. They knew that he lived at 7 Richgrove, and between March 23 and March 25, DC Williams downloaded selected video footage from the 7 Richgrove building’s video security system onto USB sticks and a hard drive. These were the recordings that were preserved and disclosed to the defence.

[30] On March 26, the police obtained a warrant to seize all of the video from the 7 Richgrove security system recorded between March 17 and March 24, 2015, but they never executed this warrant. Coincidentally, however, a few weeks later other

² By the time of the trial in the fall of 2019, Corey Murray was represented by different counsel.

officers investigating an unrelated homicide seized the 7 Richgrove DVR hard drive. In June 2015 they decided that they no longer needed the hard drive, and an officer from the Toronto Police Technical Crimes Unit (“Tech Crimes”) gave it to DC Williams, who put the hard drive in a desk drawer and did nothing further with it for nearly a year. It later emerged that the Tech Crimes officer had made a “mirror” copy of the data on the hard drive before giving the drive to DC Williams, without recording that he had done so or checking to see if the mirror copy had been properly uploaded to the police computer server.

(b) The discovery that the hard drive data was corrupted

[31] In May 2016, prior to the appellants’ preliminary inquiry, the Crown disclosed to the defence DC Williams’s notes about receiving the hard drive from Tech Crimes. However, his notes did not identify this hard drive as coming from the Richgrove building complex security video system. The trial judge attributed “no responsibility to the defence for missing this detail”, describing it as “not obvious”.

[32] While preparing for the preliminary inquiry, Crown counsel realized that there were gaps in the videos from the Richgrove complex that had been provided by the police and disclosed to the defence, and asked DC Williams to try to obtain additional video footage. This led DC Williams to check the 7 Richgrove hard drive he had received from Tech Crimes almost a year earlier. He discovered that the data on the hard drive was corrupted, and that the videos could not be viewed.

Although DC Williams was not a trained computer technician, over the next several months he made various unsuccessful attempts to recover usable video from the hard drive, including sending the drive to the DVR's manufacturer. The trial judge found that some of DC Williams's efforts probably caused further data loss. The Crown was informed of DC Williams's ongoing attempts to recover videos from the hard drive, but did not make disclosure of these efforts to the defence at this time.

(c) Disclosure of the hard drive corruption issues to the defence in November 2016

[33] In November 2016, a judicial pre-trial ("JPT") was held in the Superior Court of Justice. On the JPT form, under the heading "Disclosure – Outstanding issues", the Crown stated that it was "in possession of corrupted video surveillance from 7 Richgrove on days leading up to and after the homicide", and that "[e]fforts are being made to render the surveillance useable." However, the Crown did not disclose further details of these recovery efforts at this time, nor did defence counsel make any further inquiries.

(d) Disclosure of the loss of the videos during the trial

[34] The appellants' trial began in March 2018, but the trial judge declared a mistrial after Corey Murray discharged his counsel.

[35] In June 2019, Corey's new counsel, who had not participated in the November 2016 JPT, exchanged emails with the Crown about various video

disclosure issues. Although this correspondence was mainly focused on security video footage from the Willowridge housing complex, in one response, dated June 21, 2019, Crown counsel stated: “The police also seized the actual DVR containing the surveillance from the Richgrove complex. This footage was disclosed.” These statements were only partially accurate. While it was true that the police had seized the hard drive from the Richgrove security video DVR, and had later seized the DVR itself,³ DC Williams had discovered in May 2016 that this hard drive no longer contained any usable data. Moreover, while the video footage from 7 Richgrove that had been disclosed to the defence had originally come from the seized hard drive, these videos had been copied by DC Williams several weeks before the drive itself had been seized by the police. To the extent that Crown counsel’s email implied that all of the video from the Richgrove hard drive had been preserved and disclosed, this was incorrect and misleading.

[36] The appellants’ second trial began on September 9, 2019. Confusion then arose between defence and Crown counsel over whether the police had seized security video footage from 7 Richgrove from March 18, 2015. The true state of affairs eventually emerged about the police seizure of the Richgrove hard drive, and the discovery of the data loss almost a year later. The trial was adjourned so

³ The officers investigating the unrelated homicide in 2015 had seized just the hard drive, but in 2016 DC Williams obtained the DVR itself, as part of his unsuccessful efforts to extract usable video from the drive.

the defence could retain its own expert to try to recover video from the hard drive, but these efforts were also unsuccessful. As the trial judge explained:

There was data from before March 17 and after March 24, but it was in the same format as had been found on the video sample provided by D.C. Williams to the Crown in 2016. There were thousands of video clips of a few seconds each from different cameras, interspersed with similar clips from other cameras and other dates and times, all without any kind of organization and no file system. The footage was essentially not searchable and, for practical purposes, not useable.

[37] The Crown later discovered that the Tech Crimes officer had made a mirror image of the hard drive before he gave the drive to DC Williams in June 2015. The mirror image had an intact file organization system and contained some usable video footage from March 18, 2015, but only from before 6:00 p.m. None of this additional footage was relevant.

(2) The trial judge's *Charter* ruling

(a) Findings of fact regarding the lost videos

[38] The trial judge found that the lost video from any dates before March 18 or after March 21 was not relevant. However, the Crown conceded that the video recorded between March 18 and March 21 was relevant, and should have been preserved and disclosed. The trial judge agreed, and concluded that the police had been negligent by not seizing all of the video from these dates at the outset.

[39] The trial judge also found that DC Williams had then been negligent in his handling of the hard drive, and that his efforts to extract data from the hard drive in 2016 had probably damaged the drive's file organization system, rendering the remaining contents unusable. The trial judge explained:

I conclude that it was D.C. Williams who caused that problem in one way or another. It is clear this was not done deliberately. D.C. Williams was well-meaning, did his best, and worked hard to try to extract usable video from the hard drive. His skills were simply not up to this task and he made numerous errors. I find that the unintelligible form of the data on the hard drive resulted from negligence by D.C. Williams. I find this negligence to be unacceptable in all of the circumstances, including that a task of this complexity ought not to have been assigned to somebody with no training or experience.

[40] The trial judge noted that there were other possible reasons why the video footage from March 18 and 19 could have been lost, some of which would not have been the police's fault. However, she concluded:

I cannot be certain in this case that the missing video from March 18 and 19 was ever on the hard drive. However, in my view, the most likely explanation is that it was there originally and that something was done with the hard drive after it was in police custody, or in the process of removing it from the DVR, caused the data to be lost. This was a relevant period of time and the police had a duty to preserve that evidence. Their failure to preserve it initially ultimately resulted in the loss of the video, regardless of whether subsequent attempts to remedy the situation were also bungled.

(b) Findings of fact re Crown disclosure

[41] The trial judge found that the Crown had failed to make full and timely pre-trial disclosure both of the seizure of the hard drive, and of the subsequent loss of data on the drive. However, she concluded that this failure had been accidental rather than deliberate, explaining:

[T]he Crown failed to make full disclosure with respect to this matter. All of D.C. Williams' notes with respect to his attempts to extract video and all of the communications with Watchnet [the DVR manufacturer] in this regard should have been provided to the defence well in advance of trial. The Crown did request D.C. Williams to provide his notes, the only purpose of which would have been to provide disclosure. However, D.C. Williams failed to do so, and the Crown failed to follow up, with the result that this detail slipped between the cracks. There was no request from the defence for any follow-up as to whether the attempts to recover data had been successful, nor did the defence request any further particulars about the "corrupted video" [referred to in the November 2016 JPT form]. That said, the responsibility remains on the Crown to make timely disclosure and all of the dealings with the hard drive in 2016 and 2017 should have been disclosed.

...

I see the Crown's failure to specifically disclose these details as nothing more than an oversight. The amount of disclosure in this case, including video surveillance, was enormous. It is easy to understand how a detail such as this could have been overlooked by the Crown, just as it is easy to understand why the defence failed to ask specifically for information about the corrupted video. It should have been done; it was not done; it was a mistake. It most certainly was not deliberate, nor does it even

approach prosecutorial misconduct as alleged by the defence.

[42] The trial judge also found that the Crown did not make timely disclosure of the mirror image of the hard drive that had been made by Tech Crimes in 2015. However, the mirror image turned out not to contain anything significant, and the trial judge concluded that this late disclosure “had no impact on the trial, other than to cause a delay of about one month and some additional expense.”

(c) The trial judge’s *Charter* breach findings

[43] The loss or destruction of relevant evidence by the police and/or the Crown can violate an accused person’s s. 7 *Charter* rights in three analytically distinct ways: see *R. v. La*, [1997] 2 S.C.R. 680, at paras. 16-24; *Bero*, at para. 30.

[44] First, unless the Crown can show that the evidence was not lost or destroyed through “unacceptable negligence”, there will be a breach of the accused’s s. 7 *Stinchcombe* right to disclosure: *R. v. Stinchcombe*, [1991] 3 S.C.R. 326. Second, “a failure to produce evidence may be found to be an abuse of process, if for example, the conduct leading to the destruction of the evidence was deliberately for the purpose of defeating the disclosure obligation”: *Bero*, at para. 30. Third, the accused’s s. 7 *Charter* right to a fair trial may be infringed if the lost or destroyed evidence was particularly significant to their defence. The Supreme Court of Canada has characterized state conduct compromising trial fairness as an analytically distinct form of abuse of process, describing it as the “main category”,

with conduct that “risks undermining the integrity of the judicial process” forming the “residual category”: see *R. v. O’Connor*, [1995] 4 S.C.R. 411, at para. 73; *R. v. Babos*, 2014 SCC 16, [2014] 1 S.C.R. 309, at para. 31.

[45] The trial judge concluded that the lost video footage from March 18, from the morning of March 19 before 7:00 a.m., and from the morning of March 21, was all relevant and should have been preserved and disclosed. She held further that the Crown had not met its burden of establishing that these recordings were not lost or destroyed through unacceptable negligence. She accordingly found breaches of the appellants’ *Stinchcombe* s. 7 Charter right to disclosure. Although the trial judge also found that the Crown had not made timely disclosure of the loss of this evidence to the defence, she concluded that “[t]he real issue in this case is lost evidence, not delayed disclosure”, and that the adjournments she had already granted were a fully adequate remedy for the late disclosure by the Crown.

[46] However, the trial judge found no abuse of process under either of the two *Babos* categories. She entirely rejected the appellants’ contention that the Crown had deliberately concealed the police failure to preserve the videos, noting to the contrary that the Crown had disclosed DC Williams’s notes about receiving the hard drive, and had then revealed before the November 2016 JPT that the Crown had “corrupted video surveillance from 7 Richgrove on days leading up to and after the homicide”. The trial judge characterized the confusion that later arose at trial about the lost video footage as “an unfortunate misunderstanding”, noting that

“[t]he Crown thought the defence knew about the hard drive, but the defence did not understand the significance of [DC Williams’s] notes”.

[47] The trial judge concluded:

[T]here was nothing deliberate about the failure to disclose, no attempt to destroy evidence, and no attempt to hide anything from the defence. The police and the Crown are not held to a standard of perfection. Mistakes were made and it would have been preferable if they had not been made. However, there is no merit whatsoever in the suggestion that the Crown or the police deliberately withheld evidence or suppressed evidence or deliberately misrepresented the facts to the Court. There was no conduct of a sort that could be considered contrary to societal norms of decency or fair play, such as contemplated by the Supreme Court of Canada in cases such as *O'Connor* and *Babos*. In short, there was nothing about any of the conduct here that even remotely could be said to bring the administration of justice into disrepute. [Footnotes omitted.]

[48] With respect to the impact of the loss of the videos on trial fairness, the trial judge carefully considered how the video recordings from March 18 and 19, 2015, might possibly have assisted the defence. She concluded that they had potential relevance to the appellants’ defence in several different ways, but that the appellants were ultimately only minimally prejudiced by their loss.

[49] The most significant form of prejudice the trial judge identified was that the missing videos from March 18 and 19 could possibly have given Corey Murray a basis for challenging Ms. Wiltshire’s evidence that he was already at the 7 Richgrove apartment when she arrived on the evening of March 18. The issue of

whether Corey was at the Richgrove building complex that night before 4:00 a.m. on March 19, when a video clip that had been preserved showed him arriving with Ms. Wiltshire, was important because it bore on the disputed issue of whether he was the second man seen in the stairwell video at 1:24 a.m. that morning. As the trial judge explained, if the lost video from March 18 and 19 had established that Corey was not at 7 Richgrove before 4:00 a.m.:

This could cast doubt on the potential identification of him as the man wearing the inside out hoodie in the stairwell at [1:23] a.m., which has some additional importance because the second perpetrator (with the knife) was wearing an inside out hoodie of the same colour.

[50] However, the trial judge found that there was only an “infinitesimal” chance that the missing videos could have undermined Ms. Wiltshire’s identification of Curtis Murray as the other man in the 1:24 a.m. stairwell video, since Curtis’s face was visible on the preserved stairwell video, and “everything he was wearing that night can be traced to other video of him wearing precisely the same clothing.” Accordingly, the trial judge concluded that this form of potential prejudice from the loss of the March 18 and 19 videos only applied to Corey.

[51] The trial judge concluded that the loss of the March 18 and 19 videos did not cause any additional form of substantial prejudice to either appellant. To the extent that the missing recordings could have shown “other people in the area wearing articles of clothing similar to those worn by the two assailants who killed Trevor Seraphine”, the trial judge pointed out that:

Substantial video footage was available from 44 Willowridge of many young men shopping at the yard sale and generally moving through the lobby. For that matter, if counsel wanted to demonstrate that the articles of clothing worn by the perpetrators were commonplace, that was open to them through video of anywhere at all. The chance that this would be seen at 7 Richgrove during these particular times is wildly speculative. Therefore, I do not see the lost footage as being particularly prejudicial for this purpose.

[52] To the extent that the defence could have used the missing videos to challenge the account of the eyewitness who described seeing both Murray brothers pounding on the roof of the red Mazda on the late afternoon of March 18, the trial judge noted that:

The incident ... was only one small component of the escalating pattern of conflict between Curtis Murray and the Rushaun[e] Champagnie group. This was relevant only to a potential motive, which the jury was instructed did not have to be proved in any event. It was a very tangential part of the evidence.

However, the trial judge also recognized that this witness's evidence provided some confirmation of Ms. Wiltshire's testimony that Corey Murray was already at 7 Richgrove that evening.

(d) The trial judge's remedial analysis

[53] The trial judge concluded that any prejudice to the appellants resulting from the loss of the March 18 and 19 video recordings could be adequately addressed by an appropriate jury instruction, along with an order permitting defence counsel

to address the jury last, despite having called evidence relating to the loss of the video recordings. She accordingly found that a stay of proceedings was not necessary or justified.

[54] In *Bero*, at para. 67, Doherty J.A. stated:

Where the failure to preserve evidence results in a breach of an accused's s. 7 rights and where the defence has exercised reasonable diligence in attempting to preserve the evidence, I think the trial judge should also instruct the jury that the Crown was under an obligation to preserve the evidence and failed to do so, and that the defence cannot be faulted for not gaining access to the evidence before it was destroyed. These instructions would place the burden for the loss of the evidence on the Crown, where it belongs. These instructions may also help the jury assess the overall reliability of the investigative process which produced the evidence relied on by the Crown, and help the jury decide the significance, if any, of the absence of evidence that may have been available had the prosecution preserved all relevant evidence.

The trial judge concluded that a *Bero*-type remedial instruction was “particularly apt in this case”. She included a lengthy *Bero* instruction in her jury charge. I will discuss the details of this instruction when I turn to the appellants’ second ground of appeal, which takes issue with its adequacy.

(3) The appellants' grounds of appeal

(a) Did the trial judge err by not staying the proceedings?

[55] The appellants' first ground of appeal is that the trial judge erred by not granting them a stay of proceedings as a s. 24(1) *Charter* remedy.

[56] Their argument has three main prongs. First, they contend that the trial judge unduly minimized the significance of the Crown's delay in disclosing that the police had possession of the 7 Richgrove hard drive and were attempting to recover data from it. They argue that the Crown's delay caused them irreparable prejudice, which they say the trial judge should have taken into account when assessing the impact of the late disclosure on their fair trial rights under the main category of abuse of process. Second, they argue that the trial judge erred by stating in her reasons that there was "an acceptable explanation ... for the initial failure to disclose the existence of the hard drive", without identifying what that explanation was. Third, they argue that the trial judge erred by finding that the Crown's late disclosure was not deliberate, and that this error affected the proper balance of factors under the residual category of abuse of process.

(i) Prejudice to the defence from the Crown's late disclosure

[57] The appellants make two main arguments in support of their contention that the Crown's late disclosure caused them irreparable prejudice. First, citing *R. v.*

Dixon, [1998] 1 S.C.R. 244, at para. 34, they argue that the Crown's delayed disclosure prevented the defence from pursuing "reasonably possible avenues of investigation" that might perhaps have resulted in some of the lost video recordings being preserved in a usable form. Second, they argue that if defence counsel had known sooner that the police had possession of a vast quantity of brief snippets of unorganized and unindexed video from the 7 Richgrove hard drive, they might have been able to comb through these disorganized clips and assemble some useful footage out of them. The appellants maintain that when these two forms of prejudice are added to the mix, the balance tips in favour of a stay.

[58] I do not accept either of these arguments, for several different reasons.

[59] As a starting point, the trial judge's assessment of how the Crown's late disclosure prejudiced the defence was a factual determination that is entitled to significant appellate deference. The appellants bear the burden of demonstrating that her conclusions were tainted by palpable and overriding errors.

[60] The trial judge found that the Crown made timely disclosure, in May 2016, of DC Williams notes about receiving the hard drive from Tech Crimes in June 2015, although she did not fault the defence for not realizing that this drive came from the 7 Richgrove security video system. The appellants' first argument is that the Crown was also obliged to disclose to the defence, in advance, that DC

Williams planned to try to recover usable video footage from the corrupted hard drive.

[61] I do not agree that the Crown's *Stinchcombe* disclosure obligations extended this far. These disclosure duties apply to the "fruits of the investigation" in the possession of the Crown and the police: *Stinchcombe*, at p. 333; *R. v. McNeil*, 2009 SCC 3, [2009] 1 S.C.R. 66, at paras. 22-25. However, the prosecution is generally not required to give the defence a preview of future investigative steps the police plan to take, before they have been taken, and while it is still unknown if they will produce any disclosable information. As Doherty J.A. noted in *R. v. Darwish*, 2010 ONCA 124, 252 C.C.C. (3d) 1, at para. 30, "[a]n accused ... does not have a constitutional right to direct the conduct of the criminal investigation of which he or she is the target." See also *R. v. Barnes*, 2009 ONCA 432, at para. 1; *R. v. Daley*, 2008 BCCA 257, at para. 15; *R. v. Osman*, 2020 ONSC 1830, at para. 21

[62] I accept that in hindsight it would have been better if DC Williams and Crown counsel had gone about trying to recover data from the hard drive differently, since the trial judge found that DC Williams's inexpert data recovery attempts probably caused additional data loss. However, it does not follow from this that the Crown was obliged to seek defence counsel's input ahead of time. The appellants did not have a *Stinchcombe* s. 7 Charter right to be told in advance by the Crown what DC Williams intended to do with the hard drive, or to direct the police investigation.

While the Crown was required to disclose DC Williams's unsuccessful data recovery efforts after the fact, as the trial judge found, she was correct to focus as she did on whether DC Williams's actions that caused additional data loss were unacceptably negligent. I agree with her observation that "[t]he real issue in this case is lost evidence, not delayed disclosure."

[63] In my view, the Crown's *Stinchcombe* obligation to disclose DC Williams's failed attempts to recover data from the hard drive only crystallized after these attempts were made, by which time any damage DC Williams did to the data had already occurred. I therefore agree with the trial judge's conclusion that even if DC Williams's data recovery attempts had been disclosed to the defence in 2016 or 2017, as she found should have happened:

[The defence] would be in no different position than they found themselves in after the adjournments at trial. The relevant video is irretrievably lost, as has been confirmed by the independent expert.

[64] The appellants' second argument is that if the defence had received earlier disclosure of the unindexed collection of disorganized snippets of short video clips that were still on the corrupted hard drive, in which clips from different days and different cameras were jumbled together, they might have managed to piece together useable footage by the time of trial, presumably by manually reviewing the clips and using the time, date and camera location information on each one to put them in the proper sequence.

[65] I am not persuaded that there was ever any realistic prospect that defence counsel would have been able to do this, let alone create footage that would have meaningfully assisted the appellants in making a full answer and defence. I reach this conclusion for three main reasons.

[66] First, the trial judge found that defence counsel were given notice as early as November 2016 that the police and Crown were in possession of “corrupted video surveillance from 7 Richgrove” which they were attempting to “render ... useable”. The defence made no attempt to follow up on this, and did not request disclosure of the “corrupted” data so they could make their own attempts to salvage something useful from it. The defence’s lack of due diligence in pursuing this option weighs heavily against the appellants’ claim on appeal that they would have conducted themselves differently if they had received earlier disclosure of the corrupted data. It is also questionable whether the Crown had any *Stinchcombe* duty to disclose this apparently unusable corrupted data to the defence, since if “information is of no use then presumably it is irrelevant and will be excluded [from the obligation to disclose] in the exercise of the discretion of the Crown”: *Stinchcombe*, at p. 345.

[67] Second, the appellants do not dispute that they did eventually receive full disclosure of the evidence regarding the 7 Richgrove hard drive, by the fall of 2019, and were able to have the hard drive itself examined by their own expert. More than five years have now passed. If it were indeed possible or practical to assemble

useable video footage from the corrupted hard drive data, the appellants have now had ample time in which to do so. They have not sought to adduce any such footage as fresh evidence on their appeals. This undermines their claim that earlier disclosure of the corrupted hard drive data would have enabled them to create usable and probative video footage by the time of trial.

[68] As this court noted in *R. v. Barra*, 2021 ONCA 568, 157 O.R. (3d) 196, at paras. 139-40:

[A]n appellant must show that there is a reasonable possibility the non-disclosure or delayed disclosure affected either the outcome at trial or the overall fairness of the trial process: *Dixon*, at para. 33.

This reasonable possibility must not be entirely speculative. It must be grounded on reasonably possible uses of the non-disclosed or untimely-disclosed evidence, or reasonably possible avenues of investigation that were closed to the appellant because of the non-disclosure or late disclosure. [Emphasis in original.]

[69] The appellants have not shown that there was any reasonable possibility that they could have reconstructed useable and probative video footage from the corrupted data on the hard drive. As the trial judge noted, this task would have been “quite literally the digital equivalent of the needle in the haystack.”

[70] Third, as the trial judge explained, the main potential value to the defence of the missing video footage from March 18 and March 19 was that it might possibly have enabled Corey Murray to contradict Ms. Wiltshire’s evidence that he was

already at 7 Richgrove when she arrived that evening. In my view, there was no realistic chance that his counsel would have been able to use the corrupted data to assemble a complete video record showing all entry routes into the building at all times that night, in order to establish that Corey could not have been there. Again, the fact that Corey has not sought to adduce any usable video as fresh evidence on appeal weighs against him on this point.

[71] I am accordingly not persuaded that the appellants have met their burden of demonstrating that the trial judge erred by concluding that any prejudice to the defence from the late Crown disclosure had been fully addressed by the adjournments she had previously granted.

**(ii) The trial judge’s finding that there was an
“acceptable explanation” for the Crown’s initial failure to
disclose the existence of the seized hard drive**

[72] At one point in her s. 7 *Charter* ruling the trial judge stated:

There is an acceptable explanation, which I discuss below, for the initial failure to disclose the existence of the hard drive and no prejudice as a result of the timing of the eventual disclosure.

The appellants object that the trial judge never went on to articulate what that “acceptable explanation” was. They argue further that she erred by finding an acceptable explanation, both because they say the Crown should have made earlier disclosure of the corrupted video itself, and because of the confusion that

later arose in June 2019 when Corey's new counsel made inquiries about video disclosure, and Crown counsel inaccurately implied in his reply that all of the video from the Richgrove DVR had been disclosed.

[73] The trial judge's reasons must be read as a whole. She had previously found that the Crown had disclosed the existence of the hard drive in May 2016 when it gave the defence DC Williams's notes, explaining:

It would have been clear to the police and the Crown that what was being referred to [in the notes] was the Western Digital hard drive from the Richgrove complex DVR system. This would not have been as readily apparent to the defence as the notes of June 24 and July 6 are not specific about where the hard drive came from, and other hard drives are referred to here and there throughout the notes.

The Crown then disclosed on the November 2016 JPT form both that the police had the hard drive from 7 Richgrove, and that the data on the drive was corrupted and not "usable".

[74] The trial judge was entitled to conclude that this latter disclosure provided an "adequate explanation" for the confusion that may have later been caused by the Crown's June 2019 email to Corey's new counsel: namely, that Crown counsel did not realize that Corey's new counsel, who had not participated in the November 2016 JPT, had apparently either not received or read the JPT form, and did not appreciate that the DVR hard drive was corrupted (as discussed below at para. 79).

[75] In any event, the issue of whether the Crown had established an “acceptable explanation” for the late disclosure of the existence of the hard drive is ultimately of no consequence, given the trial judge’s findings on the issue of prejudice. She found that the Crown’s failure to provide earlier disclosure of DC Williams’s efforts to extract usable data from the hard drive breached the appellants’ *Stinchcombe* s. 7 *Charter* right to full and timely disclosure. However, she also found that this late Crown disclosure was unintentional, and that it caused no prejudice to the defence, and for these reasons did not justify a stay of proceedings. Even if the trial judge had found a further s. 7 *Charter* breach arising from the late disclosure of the existence of the hard drive, this would not have affected her remedial analysis.

(iii) The trial judge did not err by finding no deliberate Crown misconduct

[76] The appellants’ third argument takes issue with the trial judge’s factual finding that the Crown’s delayed disclosure was not deliberate. They focus on the misstatements in Crown counsel’s June 21, 2019 email, which implied that the seized DVR hard drive from 7 Richgrove had contained useable video footage which had already been disclosed to the defence. The appellants argue that since Crown counsel had personal knowledge of DC Williams’s unsuccessful efforts to recover data from the hard drive three years earlier, in 2016, the trial judge should have inferred that his misstatements were deliberate, or at least that he

deliberately avoided correcting any misunderstanding his email might have caused. As summarized in Corey Murray's factum, which Curtis adopts on this point, the appellants' argument is that:

Absent any evidence or explanation for the Crown's silence, in light of the evidence that the Crown was personally familiar with this as early as the preliminary hearing, there was a strong inference that the failure to disclose relevant information in response to this inquiry about the seizure of the drive and issues related to ongoing attempts at video extraction could not simply be an oversight.

[77] In oral argument, Curtis Murray placed particular emphasis on an email that Crown counsel sent in September 2016 seeking funding to pay Watchnet to examine the corrupted hard drive, in which he stated that the video on the hard drive "could be absolutely crucial to our case". Curtis argues that having characterized the 7 Richgrove video evidence as "crucial" in September 2016, it is implausible that Crown counsel would later have been honestly mistaken about what information about the lost video had been disclosed to the defence.

[78] Trial judges' decisions about what inferences to draw from primary facts are entitled to substantial appellate deference. Intervention is only warranted if the trial record and the reasons for judgment reveal that the trial judge made a palpable and overriding error: see e.g. *Waxman v. Waxman* (2004), 186 O.A.C. 201 (C.A.), at para. 300, leave to appeal refused, [2004] S.C.C.A. No. 291. A similarly deferential approach applies on appellate review of a trial judge's determination

about whether established facts meet the threshold for finding an abuse of process under the residual category under s. 7 of the *Charter*: see e.g., *R. v. Brunelle*, 2024 SCC 3, 92 C.R. (7th) 219, at paras. 78-79.

[79] I am not persuaded that the appellants have met this heavy burden. The trial judge carefully considered the possibility that Crown counsel might have been intentionally trying to mislead the defence in June 2019, but rejected this inference as not supportable on the record as a whole. Among other things, she noted that any suggestion that Crown counsel had been trying to hide the loss of video from the Richgrove video security system hard drive from the defence was undermined by his own prior disclosure years earlier, in November 2016, that the Crown was in possession of “corrupted video from 7 Richgrove on days leading up to and after the homicide”. Corey Murray’s new counsel may not have known about this earlier disclosure, which was made several years before he became involved in the case, but Crown counsel had no way of knowing what Corey’s new counsel would have been told by his previous counsel. The law presumes that when there is a change of counsel, new counsel will familiarize themselves with the disclosure the Crown has already made. It would be natural for Crown counsel to assume that Corey’s new counsel would have received and reviewed an important document like the JPT form. The Crown had no obligation to disclose this document again, or point it out to defence counsel.

[80] Likewise, while Crown counsel may have hoped in September 2016 that the 7 Richgrove hard drive might turn out to hold “crucial” evidence for the prosecution, his hopes were dashed a few weeks later, when Watchnet was unable to recover any additional video from the drive. By the time of his email exchanges with defence counsel in June 2019, Crown counsel had known for more than two and a half years that the only video recovered from the drive consisted of unindexed randomized clips, which appeared to be unusable. In this context, the trial judge was entitled to conclude that the misstatements in Crown counsel’s email about what had already been disclosed to the defence were simply honest mistakes.

[81] The trial judge was also fully entitled to conclude that the Crown’s failure to make full and timely disclosure of the circumstances in which data from the 7 Richgrove hard drive was lost resulted from a series of unintentional errors, made in the context of a large and complex prosecution. She explained:

In my opinion, the duty of disclosure was regarded very seriously by both the Crown and the police. That they made mistakes does not elevate the problem beyond that. The amount of disclosure in this case was voluminous. As I previously noted, the Crown was not the only party who failed to follow-up on the corrupted video issue referred to at the pretrial; the defence also missed that point. Had they thought to ask, everything would have inevitably been disclosed far earlier. I say that not to attribute blame to the defence, but merely to point out that perfection is not the standard required.

I also recognize that the whole of the conduct must be looked at collectively rather than piecemeal. Even where an individual failure on its own would not cause a concern

about the integrity of the police, the Crown or the justice system generally, the cumulative effect of a number of such instances could potentially do so. However, even viewed cumulatively, I do not see that the conduct of the Crown and/or the police even comes close to causing the kind of prejudice required to constitute abuse of process under the residual ground.

[82] I see no basis for interfering with her analysis or factual conclusions.

(b) Was the jury given an adequate *Bero* instruction?

[83] The appellants' second ground of appeal against their convictions takes issue with the adequacy of the *Bero* instructions the trial judge gave to the jury.

(i) The trial judge's *Bero* instructions

[84] The trial judge gave an initial *Bero* instruction before counsels' closing addresses. She then included an expanded version of this instruction in her final jury charge. This latter instruction takes up approximately 18 pages of the jury charge transcript.

[85] The trial judge began by discussing the duty of the Crown and police to preserve and disclose relevant information. She then reviewed the evidence of the circumstances that resulted in some of the 7 Richgrove security video recordings not being preserved, and recapped how the loss of this evidence came to light during the trial.

[86] The trial judge directed the jury that the potentially relevant lost video spanned two different time periods: (i) from approximately 6:00 p.m. on March 18

to 7:00 a.m. on March 19, 2015, and (ii) after 7:00 a.m. on March 21. She then instructed the jury:

Given the failure of the police to preserve potentially relevant video evidence, it is open to you to take this failure into account in assessing the weight of the evidence. It is not disputed that this evidence: (a) could have been preserved; and (b) should have been preserved; and (c) was not preserved. In these circumstances, it is open to you to conclude that the evidence that was lost would not support the position of the Crown. You may conclude that, or you may choose not to. It is entirely for you to say. In considering how to treat this lost evidence, you should have regard to the nature of the evidence that is lost, how directly relevant it is to the offence charged, and any explanation provided for the loss. I can tell you that the defence is in no way to blame for the loss of this evidence; the blame lies entirely at the feet of the Crown and the police.

[87] The trial judge continued by telling the jury that there are “gradations of blame for the loss of evidence”, ranging from the deliberate destruction of key evidence supporting the defence at one extreme, to a simple mistake resulting in the failure to preserve a small item of evidence at the other end of the spectrum.

She told the jury:

The problem in this case lies somewhere between those extremes. I have already made a ruling in this case that none of this was done deliberately, either by the police or the Crown. However, there was clearly some negligence involved at the time the first seizures of video were made and subsequently in the efforts to retrieve further data. It is for you to determine the extent to which it affects your analysis. You may consider that the lost evidence should be presumed to favour the defence, but you are not required to do so. You may consider that it gives rise to

a reasonable doubt, but you are not required to do so. You may also, if you choose analyze the impact of the missing evidence in the context of what it might relate to and decide how it affects your analysis in each distinct situation. You must not, however, engage in an analysis based on some notion that the police and/or the Crown have deliberately acted to keep relevant evidence away from the defence, or away from you. That is simply not the case.

[88] The trial judge then reviewed four specific ways in which the lost videos could potentially have been relevant:

- i) To confirm or contradict Ms. Wiltshire's testimony that Corey Murray was already at 7 Richgrove when she arrived on the evening of March 18, which bore on the issue of whether he was one of the men seen on the 1:24 a.m. stairwell video on the morning of March 19;
- ii) To confirm or contradict the eyewitness's testimony about seeing both Murray brothers banging on the top of the red Mazda in the Richgrove parking lot during the evening of March 18;
- iii) To confirm or refute the possibility that some flickering lights seen in the preserved 7 Richgrove video footage during the early morning hours of March 21 were from the same car that could be seen on other video circling the Willowridge buildings and turning onto Richgrove Road; and
- iv) To provide further evidence about whether other people seen in or around the Richgrove housing complex wore clothing and shoes similar to those worn by the Murray brothers and/or the two men who killed Mr. Seraphine.

The trial judge had reviewed the first two of these areas as part of the mid-trial *Bero* instruction she gave the jury before counsels' closing addresses, and they had also been included in the proposed jury instructions that she had discussed with the Crown and defence when she made her s. 7 *Charter* ruling. The third and

fourth points were then included in the final charge at the request of counsel for Corey and Curtis Murray, respectively.

[89] The trial judge ended her *Bero* instruction by reiterating that it was entirely up to each juror to decide what significance to attach to the unavailability of this evidence, and that they need not be unanimous. She concluded by telling the jury:

You must be fair to the defence if you find that they have been harmed in any way by the loss of particular pieces of video that the police ought to have preserved. However, any notions of misfeasance by the police must not be part of your analysis. Emotion has no place in your assessment of the impact of the lost evidence. Your personal feelings about the police conduct must be set aside.

(ii) Analysis

[90] When assessing the sufficiency of the trial judge's *Bero* instructions as a remedy for the infringement of the appellants' s. 7 *Charter* rights, it is important to note that these instructions were crafted cooperatively with the parties, and included significant input from the appellants' trial counsel. While there is some disagreement over how much of the instruction was actually written by defence counsel, the appellants do not dispute that their trial counsel did not raise any of the specific objections to the instructions that they now advance on their appeals. This is not determinative, since the ultimate responsibility for the jury charge lies with the trial judge, but it remains "a significant consideration in determining whether or not appellate intervention is warranted": *R. v. Laing*, 2016 ONCA 184,

347 O.A.C. 133, at para. 45; see also *R. v. Abdullahi*, 2023 SCC 19, 483 D.L.R. (4th) 1, at paras. 66-69.

[91] In his factum, Curtis Murray argued that the jurors should have been instructed that if they found the Crown's explanation for the loss of evidence to be unacceptable, they must conclude that the lost evidence would not have assisted the Crown. His counsel did not press this argument in his oral submissions, and I would reject it. The goal of a *Bero* instruction is to "help the jury decide the significance, if any, of the absence of evidence that may have been available had the prosecution preserved all relevant evidence": *Bero*, at para. 67. While jurors are entitled to conclude that missing items of evidence would not have assisted the Crown, or might have assisted the defence, this inference is permissive, not mandatory. The trial judge was correct to instruct the jury that it was up to each of the jurors to decide for themselves what significance, if any, they would attach to the police failure to preserve particular items of the 7 Richgrove video footage.

[92] Curtis argues further that it was an error for the trial judge to direct the jurors that they could not find that the police failure to preserve the evidence had been deliberate, and to instruct them that "any notions of misfeasance by the police must not be part of your analysis". He contends that even though the trial judge had found that any suggestion that the police had deliberately failed to preserve the video recordings was baseless, the appellants were still entitled to have this possibility left with the jury.

[93] Curtis cites no authority for this proposition, and I do not accept it. The *Bero* instruction was intended to remedy the breaches of the appellants' s. 7 *Charter* rights that the trial judge found had been established, and her remedial instructions needed to be tailored to reflect the breaches that she had identified. Having found that the evidence did not support the conclusion that the police had deliberately failed to preserve the 7 Richgrove video recordings, and that the s. 7 *Charter* breaches were instead the result of unacceptable police negligence, the trial judge did not err by instructing the jury accordingly. Her factual findings on this issue were well supported by the record before her. Indeed, I entirely agree with them.

[94] Corey Murray's main complaint about the *Bero* instruction is to argue that it did not properly explain to the jury how the lost videos from 7 Richgrove could have supported his position that he was not present before 4:00 a.m. on the night of March 18-19, contrary to Ms. Wiltshire's testimony, and thus could not have been the second person captured in the 1:24 a.m. stairwell video.

[95] In my opinion, this complaint is groundless, since the trial judge specifically addressed this issue at some length in both her mid-trial *Bero* instruction and in her final charge. She explained in her final instructions:

If all the video footage from all entrances to 7 Richgrove for March 18th and March 19th was available, you would be able to confirm the accuracy of Ms. Wiltshire's testimony that Curtis and Corey Murray were in the building. Of course, even if they were there, that does not

mean that they are the men in the stairwell at 1:24 a.m., but at least it would be possible.

Although the trial judge continued by discussing how the missing video could possibly have contradicted Ms. Wiltshire's identification of Curtis as the first man in the stairwell video, her focus on Curtis is understandable, since Ms. Wiltshire did not positively identify Corey as the second man. The trial judge concluded her instruction on this point by telling the jury:

[Y]ou should also consider the fact that if the defence had the full video, it might show that Curtis Murray did not enter the building at any time between the Hasty Market incident on March 18th, 2015 and 1:24 a.m. on March 19th, which would undermine Ms. Wiltshire's identification of him in the stairwell, and could also potentially be used by you as an indication that her evidence as a whole might not be credible or reliable. Given that this evidence has been lost, it is open to you to conclude that Curtis Murray and Corey Murray were not there that night.

Alternatively, you may choose merely to reject Ms. Wiltshire's identification as being unreliable due to the lack of corroboration, but not go the next step and conclude the Murray brothers were not in the building. Even if you reject Ms. Wiltshire's identification because of the missing evidence, it is still open to you to consider whether, based on the whole of the evidence, Curtis and/or Corey Murray were in the south stairwell at 1:24 a.m., as shown on the video. Or, you may accept Ms. Wiltshire's evidence on this point as being reliable and credible. This is entirely your decision. [Emphasis added.]

[96] In my view, these instructions clearly conveyed to the jurors that the missing video was a factor they should consider when assessing whether the evidence as

a whole established that either Curtis or Corey were the men seen in the 1:24 a.m. stairwell video. Significantly, Corey's trial counsel did not object to this aspect of the instructions, or ask the trial judge to say anything more when she explained the potential impact of the lost video on Corey's defence.

(4) Disposition

[97] For all of these reasons, I am satisfied that the trial judge did not err by declining to stay the proceedings, and that her *Bero* instruction was fully adequate in the circumstances. I would accordingly dismiss both conviction appeals.

C. THE SENTENCE APPEALS

[98] The appellants appeal against the 20-year parole ineligibility periods the trial judge imposed on them both. Some background facts are necessary to put their arguments in context.

(1) Factual background

[99] The sentencing proceedings in this case took nearly a year to complete. In February 2020, the trial judge heard submissions about the factual basis on which she should sentence the appellants, pursuant to *R. v. Ferguson*, 2008 SCC 6, [2008] 1 S.C.R. 96. She released her ruling on this issue on March 30, 2020.⁴ I will refer to this as the "*Ferguson* ruling". Sentencing submissions were then delayed

⁴ "Reasons for Decision #7: (*Gardiner* Hearing)", reported at 2020 ONSC 1930.

until November 2020, in part because of the COVID-19 pandemic and in part because it took several months to obtain an enhanced pre-sentence report for Curtis Murray. The trial judge imposed sentence on January 29, 2021.⁵

(a) The routes to liability for murder left with the jury

[100] As I have noted, the Crown's theory at trial was that the Murray brothers' killing of Mr. Seraphine was connected to Curtis Murray's escalating feud with the Champagnie group. However, it was common ground that Mr. Seraphine was not part of the Champagnie group, nor was he a resident of the 44 Willowridge apartment building. There was also no evidence that the Murray brothers knew Mr. Seraphine, had any reason to target him personally, or would have known that he would be visiting 44 Willowridge that night. As the trial judge noted in her *Ferguson* ruling, "[i]t is impossible on the evidence, particularly with respect to the movements of these three people, that this was a deliberate targeted killing of the individual known to the killers to be Trevor Seraphine."

[101] The Crown's primary theory was that the Murray brothers returned to 44 Willowridge in the early morning hours of March 21, 2015, having formed a plan to kill anyone they happened to find who was associated with the building. On this scenario, their killing of Mr. Seraphine in the 44 Willowridge entryway would be first degree murder: see e.g. *R. v. Ching*, 2019 ONCA 619, 378 C.C.C. (3d) 284,

⁵ "Reasons for Decision #8: (Sentencing)", reported at 2021 ONSC 597.

at paras. 36-37; *R. v. Kluge* (1987), 22 O.A.C. 107 (C.A.), at para. 26; and *R. v. Dipchand*, [1991] O.J. No. 1775 (C.A.), at paras. 9, 23.

[102] Several other alternative scenarios were canvassed during the pre-charge conference. One was that the Murray brothers had formed a plan to return to 44 Willowridge and kill a member of the Champagnie group, and had mistaken Mr. Seraphine for some other person who was a member of this group. A second scenario was that they went to 44 Willowridge planning to kill a member of the Champagnie group, but had decided on the spur of the moment to kill Mr. Seraphine instead, without believing that he was a group member. A third scenario was that they had not planned in advance to kill anyone, and had murdered Mr. Seraphine impulsively when they found him outside the building.

[103] It was common ground that if the Murray brothers had mistaken Mr. Seraphine for some other specific person whom they had planned and deliberated over killing, this would make them guilty of first degree murder on the basis of transferred intent: see *R. v. Droste*, [1984] 1 S.C.R. 208; *Ching*; and *Criminal Code*, R.S.C. 1985, c. C-46, s. 229(b). There was also no disagreement that the second and third scenarios would both properly lead to a verdict of second degree murder: see *Ching*.

[104] However, during the pre-charge conference Crown counsel submitted that there was insufficient evidence to leave with the jury, as a route to first degree

murder, the possibility that the Murray brothers had planned to kill a member of the Champagnie group, and had killed Mr. Seraphine because they mistakenly believed him to be a group member. The defence agreed. Although the trial judge had reservations about whether the Crown's position was correct in law, she acceded to the submissions of counsel. As she explained in her *Ferguson* ruling, she "was not prepared to leave first degree murder with the jury over the objections of all counsel, not only of defence counsel, but also the Crown."

[105] The trial judge accordingly instructed the jury that if they found that the Murray brothers had gone to 44 Willowridge with a plan to kill a member of the Champagnie group, "the killing of Trevor Seraphine does not fall within the plan." She instructed them further that:

Mistaken identity cannot be used here as there is no person that can be identified as the individual the killers thought Trevor Seraphine to be, and no evidence to suggest he resembled any of the members of the group, except in the most superficial or vague way. If a person sets out with a specific intention to kill person A, but for whatever reason impulsively changes that plan and kills Person B, that would be second degree murder, not first degree murder. The level of intent required for first degree murder would not have been established.

[106] The trial judge proceeded to map out three different routes by which the jurors, once they were satisfied that the Murray brothers were the men who killed Mr. Seraphine, could find them liable for either first or second degree murder:

(a) if you are satisfied beyond a reasonable doubt that there was planning and deliberation to kill a person connected to 44 Willowridge Road, and Trevor Seraphine was killed as part of that plan, that would be first degree murder;

(b) if you are satisfied beyond a reasonable doubt that there was planning and deliberation to kill one of the men involved in the various hostile actions against Curtis Murray, and Trevor Seraphine was then killed, that would be second degree murder;

(c) if you find that killing Trevor Seraphine was an impulsive act, or if you have a reasonable doubt as to the existence of planning or deliberation, that would be second degree murder.

[107] The effect of these instructions was to narrow the jury's consideration of first degree murder to the scenario posited by the Crown, in which the Murray brothers went to 44 Willowridge planning to kill someone connected to the building, and were carrying out this plan when they killed Mr. Seraphine. The jurors were directed that unless they were satisfied of this beyond a reasonable doubt, they were to find the Murray brothers guilty of second degree murder.

(b) The trial judge's factual findings in her *Ferguson* ruling

[108] In her *Ferguson* ruling, the trial judge concluded, based on her own assessment of the evidence, that the Murray brothers' killing of Mr. Seraphine "was the consequence of a thought-out plan rather than an impulsive act". She explained further that she had "no doubt whatsoever that Curtis and Corey Murray

believed that Trevor Seraphine was an associate of the Champagne group and that is why they killed him.” The trial judge then stated:

The awkward position this puts me in is that on my own view of the law this would constitute first degree murder. However, acquiescing to the views of all counsel, that is not a possibility I left to the jury. If any member of the jury had come to the same conclusion on the facts as I have done, he or she would have rendered a verdict of second degree murder. I was not prepared to put the accused to the jeopardy of a conviction for first degree murder where this was not sought by the Crown.

[109] Continuing, the trial judge stated:

Thus, for purposes of sentencing, I will treat this case as one in which the facts are as I have found them and where this does not constitute sufficient planning and deliberation [to] constitute first degree murder. In other words, having headed to 44 Willowridge Road for the purposes of killing a member of the Champagne group as planned, the Murray brothers instead killed the first random person they saw. This is second degree murder, in the same manner as was contemplated by the Court of Appeal in *Ching*. However, in terms of moral blameworthiness it is very close to first degree murder, and not a sudden, impulsive decision to take a life. [Emphasis added.]

[110] The trial judge concluded by stating:

To summarize, I find that the Murray brothers planned and deliberated to retaliate against the Champagne group by killing one of its members. Instead, they killed Trevor Seraphine. This is an aggravating factor on sentencing. I am satisfied of this factor beyond a reasonable doubt. I accept that if the doctrine of mistaken identity does not elevate this case to first degree murder, there is an element of impulsivity involved in the decision

to kill Trevor Seraphine rather than a member of the Champagnie group. Therefore, I must not treat this situation as equivalent to a conviction for first degree murder. That said, the range of conduct that constitutes second degree murder is vast, and on that continuum, this case falls very close to first degree murder. [Emphasis added.]

(2) The trial judge's reasons for sentence

[111] In her reasons for sentence, delivered on January 29, 2021, the trial judge reiterated that in her *Ferguson* ruling, she had found that:

[T]he Murray brothers headed over to Willowridge that night intent on exacting revenge by killing a member of the Champagnie group. Trevor Seraphine was not a member of the Champagnie group, but the Murray brothers mistakenly believed he was.

...

If Trevor Seraphine had been a member of the Champagnie group, this would clearly be first degree murder. However, I instructed the jury that if the plan had been to kill somebody in the Champagnie group and the accused mistakenly believed Trevor Seraphine was a member of that group, they would only be guilty of second degree murder. I am by no means satisfied that this is a correct proposition of law. However, I raised this concern at trial and the Crown was adamant that if the intent was to kill a member of the Champagnie group, the only available verdict was second degree murder. Both defence counsel concurred and I was not prepared to leave first degree murder with the jury as a possible verdict on this scenario over the objections of all counsel.

For present purposes, I accept that this is a second degree murder and that the level of intent required for first degree murder has not been established. However, it is

difficult to imagine a second degree murder that could possibly be closer to first degree murder than this one. This is an aggravating factor. Indeed, it is all the more tragic that the victim of this killing had nothing to do with the petty property crimes that drove the Murray brothers to seek a homicidal revenge. [Footnotes omitted.]

(3) Analysis

[112] The appellants make two arguments. First, they interpret the trial judge's reasons as sentencing them on the basis that they killed Mr. Seraphine under the mistaken belief that he was a member of the Champagne group. They contend that this was an error, because the trial judge had removed this option from the jury's consideration. Second, they argue that the trial judge erred by sentencing them on a different factual basis than she had said she would do in her *Ferguson* ruling.

[113] As a starting point, I agree that a trial judge's findings of fact on sentencing are constrained by the options that were left open to the jury. When a trial judge directs jurors that they cannot make some finding of fact, the jurors must be presumed to have followed this instruction. Sentencing judges are "bound by the express and implied factual implications of the jury's verdict": *R. v. Ferguson*, at para. 14, citing *R. v. Brown*, [1991] 2 S.C.R. 518, at p. 523. I thus agree that when the jury has been instructed that a particular finding of fact is unavailable, it is necessarily implied that their verdict must not have been based on this factual

finding. I thus accept that it would be an error for a trial judge to sentence an accused person based on a finding of fact that the jury was told it could not make.

[114] However, I do not agree with the appellants that the trial judge made this error, nor do I agree that she sentenced them on a different factual basis than the one she had outlined in her *Ferguson* ruling. Her reasons for sentence not only refer back to her prior *Ferguson* ruling, but footnote the specific paragraphs that led up to her conclusion in that ruling that she intended to sentence the appellants on the basis that, having planned to kill a member of the Champagnie group, they “instead killed the first random person they saw”, and thus committed second degree murder. Reading her *Ferguson* ruling and her reasons for sentence together, her statement in her reasons for sentence that she “accept[ed] that this is a second degree murder and that the level of intent required for first degree murder has not been established” must be understood as reflecting the approach she had said in her *Ferguson* ruling she meant to follow.

[115] In any event, even if the trial judge had made the errors the appellants allege, this would not affect the fitness of the 20-year parole ineligibility periods she imposed on them both. In my view, these periods of parole ineligibility are fit, regardless of whether the appellants killed Mr. Seraphine believing him to be a member of the Champagnie group, or killed him knowing that he was not a group member.

[116] I agree with the trial judge that the first scenario would have properly supported convictions for first degree murder. If the appellants believed that by killing Mr. Seraphine they were carrying out the very planned and deliberate murder they had set out to commit, there is no justification for recharacterizing their crime as a second degree murder, merely because they mistakenly killed the wrong person: see *Ching*, at para. 28. The appellants accordingly received a windfall when the trial judge reluctantly acceded to the trial Crown's position and instructed the jury that this scenario would only support a verdict of guilty of second degree murder.

[117] On the second scenario, Mr. Seraphine's killing was not a first degree murder. However, it is debateable to what extent intentionally killing a randomly-chosen innocent person, after a scheme to commit a planned and deliberate murder has been thwarted, should be considered less morally reprehensible than actually committing the original planned and deliberate murder. I agree with the trial judge's observation in her *Ferguson* ruling that even on this alternative factual basis, the appellants' moral blameworthiness remained "very close to first degree murder".

[118] The trial judge carefully considered all of the aggravating and mitigating circumstances, and the appellants have not pointed to any other errors in her analysis that would disentitle her assessment of these factors from receiving the usual appellate deference. Even if I were to find that the trial judge erred by not

sentencing the appellants on the basis she had outlined in her *Ferguson* ruling, I am not persuaded that shorter periods of parole ineligibility would be warranted for either appellant. By way of comparison, in *Ching*, where the appellant spontaneously killed his wife's uncle after the uncle prevented him from carrying out the planned and deliberate murder of his wife, this court upheld the 21-year period of parole ineligibility imposed when he was resentenced for second degree murder: *R. v. Ching*, 2022 ONCA 183.⁶

[119] Accordingly, while I would grant the appellants leave to appeal their sentences, I would dismiss their sentence appeals.

D. DISPOSITION

[120] In the result, I would dismiss the appellants' conviction appeals. I would also grant them both leave to appeal sentence, but would dismiss their sentence appeals.

Released: March 21, 2025 "J.M.F."

"J. Dawe J.A."

"I agree. Fairburn A.C.J.O."

"I agree. M.A. Code J. (*ad hoc*)"

⁶ The appellant in *Ching* was convicted of first degree murder at trial, but this court substituted a conviction for second degree murder and remitted the case to the trial court for sentencing.